

Chief Justice's Court

Case :- WRIT - C No. - 12946 of 2011

Petitioner :- Hari Krishna Pandey

Respondent :- Purvanchal Electricity Distribution Nigam Ltd.
And Another

Petitioner Counsel :- Pradeep Kr. Tiwari

Respondent Counsel :- Anubhav Shukla

Hon'ble Ferdino Inacio Rebello, Chief Justice

Hon'ble Vineet Saran, J.

Prima-facie the petitioner is able to point out that the bill is for the period after the permanent disconnection was made.

In the light of that, respondents are directed till further orders not to realize or recover any amount in respect of the bill dated 20.1.2011.

Place the matter on Board on 18.3.2011.

Order Date :- 4.3.2011

p.s.

(Vineet Saran, J.) (F.I. Rebello, C.J.)

Court No. - 38

Case :- WRIT - C No. - 12946 of 2011

Petitioner :- Hari Krishna Pandey

Respondent :- Purvanchal Electricity Distribution Nigam Ltd. And
Another

Counsel for Petitioner :- Pradeep Kr. Tiwari, Krishna Kumar Mishra

Counsel for Respondent :- Anubhav Shukla, S.C.

Hon'ble Ran Vijai Singh, J.

Hon'ble Vinod Kumar Srivastava-III, J.

Ms. Maimuna Fatima, learned counsel states that in the present case Shri Mahboob Ahmad is appearing for the respondents, but his name has not been shown in the cause list.

As prayed, list this case in the next cause list showing the name of Shri Mahboob Ahmad as counsel for the respondents.

Order Date :- 9.3.2017

Sumaira

Court No. - 38

Case :- WRIT - C No. - 12946 of 2011

Petitioner :- Hari Krishna Pandey

Respondent :- Purvanchal Electricity Distribution Nigam Ltd. And
Another

Counsel for Petitioner :- Pradeep Kr. Tiwari, Krishna Kumar Mishra

Counsel for Respondent :- Anubhav Shukla, S.C.

Hon'ble Ran Vijai Singh, J.

Hon'ble Vinod Kumar Srivastava-III, J.

Learned counsel for the petitioner has sent his
illness slip today.

The case is being passed over for the day.

Order Date :- 23.3.2017

Sumaira

Court No. - 29

Case :- WRIT - C No. - 12946 of 2011

Petitioner :- Hari Krishna Pandey

Respondent :- Purvanchal Electricity Distribution Nigam Ltd.
And Another

Counsel for Petitioner :- Pradeep Kr. Tiwari, Krishna Kumar
Mishra

Counsel for Respondent :- Anubhav Shukla, Mahboob
Ahmad, S.C.

Hon'ble Tarun Agarwala, J.

Hon'ble Ashok Kumar, J.

List has been revised. No one appears on behalf of the petitioner to press this petition.

Sri Mahboob Ahmad, the learned counsel for the respondents is present.

The writ petition is dismissed for want of prosecution.

Order Date :- 28.8.2017

YK

(Ashok Kumar, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 12946 of 2011

Petitioner :- Hari Krishna Pandey

Respondent :- Purvanchal Electricity Distribution Nigam Ltd. And
Another

Counsel for Petitioner :- Pradeep Kr. Tiwari, Krishna Kumar Mishra

Counsel for Respondent :- Anubhav Shukla, Mahboob Ahmad, S.C.

Hon'ble Tarun Agarwala, J.

Hon'ble Ajay Bhanot, J.

The case is passed over on the illness slip of Sri Mahboob Ahmad, the learned counsel for the respondents.

Order Date :- 26.10.2017

AKJ

(Ajay Bhanot, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 12946 of 2011

Petitioner :- Hari Krishna Pandey

Respondent :- Purvanchal Electricity Distribution Nigam Ltd.
And Another

Counsel for Petitioner :- Pradeep Kr. Tiwari, Krishna Kumar
Mishra

Counsel for Respondent :- Anubhav Shukla, Mahboob
Ahmad, S.C.

Hon'ble Tarun Agarwala, J.

Hon'ble Ajay Bhanot, J.

Cases of Sri Mahboob Ahmad, the learned
counsel for the respondent are adjourned till
20.11.2017.

List after adjournment.

Order Date :- 16.11.2017

YK

(Ajay Bhanot, J) (Tarun Agarwala, J.)

Court No. - 35

Case :- WRIT - C No. - 12946 of 2011

Petitioner :- Hari Krishna Pandey

Respondent :- Purvanchal Electricity Distribution Nigam Ltd. And
Another

Counsel for Petitioner :- Pradeep Kr. Tiwari, Krishna Kumar Mishra

Counsel for Respondent :- Anubhav Shukla, Mahboob Ahmad, S.C.

Hon'ble Bharati Sapru, J.

Hon'ble Saral Srivastava, J.

Order on the Restoration Application

Cause shown is sufficient; in view of the facts stated in the affidavit filed along with the restoration application, the order dated 28.08.2017 dismissing the writ petition in default is recalled. The writ petition is restored to its original position. The restoration application is allowed.

List in the next cause list before the appropriate Court.

This matter may not be treated as tied up or part heard to this Bench.

Order Date :- 10.4.2018

S.P.

Court No. - 43

Case :- WRIT - C No. - 12946 of 2011

Petitioner :- Hari Krishna Pandey

Respondent :- Purvanchal Electricity Distribution Nigam Ltd. And Another

Counsel for Petitioner :- Pradeep Kumar Tiwari, Krishna Kumar Mishra

Counsel for Respondent :- Anubhav Shukla, Mahboob Ahmad, S.C.

Hon'ble Salil Kumar Rai, J.

Hon'ble Arun Kumar Singh Deshwal, J.

The grievance of the petitioner in the present petition is regarding the electricity bill to the tune of Rs.2,92,452/- issued to him on 20.1.2011.

It is the case of the petitioner that the bill has been issued after electricity connection of the petitioner was permanently disconnected on an application for the said purpose having been filed by the petitioner. The fees for permanent disconnection was paid by the petitioner on 21.7.2010 as is evident from the document annexed as Annexure-3 to the writ petition. It has also been stated in the petition that an F.I.R. was registered against the petitioner u/s 135 Electricity Act, 2003 for unauthorized use of electricity but a final report has been filed in the said case which has been accepted by the concerned court.

No counter affidavit has been filed by the respondent- Electricity Distribution Nigam Ltd. or any of its officers indicating that the procedure prescribed in the U.P. Electricity Supply Code, 2005 was followed while making any assessment regarding electricity used by the petitioner.

Under the Electricity Supply Code, 2005 as well as the Electricity Act, 2003, the petitioner has a remedy to file an appeal against the assessment order u/s 127 of the Act, 2003. However, learned counsel for the petitioner states that the provisional assessment was not supplied to the petitioner.

In view of the aforesaid facts, it would serve no purpose to keep the present petition pending before this Court and the petition is disposed of with the liberty to the petitioner to file a representation before the Executive Engineer, Electricity Distribution Division-II, U.P. Power Corporation Ltd. Allahabad i.e. respondent No.2, bringing to his notice all the necessary facts, who shall enquire into the same and take appropriate action depending on the decision taken by him on the representation of the petitioner.

In case the Executive Engineer finds that the provisional assessment was not given to the petitioner or the assessment was not done in accordance with Section 126 of the Act, 2003 or the Supply Code, 2005, he shall withdraw the bill. In case the decision is against the petitioner, the petitioner shall be at liberty to challenge the assessment order in any appeal filed u/s 127 of the Act, 2003 read with Supply Code, 2005.

The Executive Engineer shall decide the representation, filed by the petitioner, within six months from the date of filing of the same.

With the aforesaid direction, the petition is **disposed of**.

Order Date :- 22.3.2023

Vandana